

CYPRUS REPUBLIC

COMMISSIONER

File No.: 11.17.001.011.036

OFFICE OF THE COMMISSIONER FOR PERSONAL DATA PROTECTION
DECISION

Complaint regarding the disclosure of a medical certificate to a third party

Case Facts

Positions of the Complainant

In the complaint, and in letters from the complainant's lawyers, dated

Based on the duties and powers conferred upon me by Article 57(1)(f) of Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter referred to as the "Regulation"), I examined a complaint submitted to my Office on April 5, 2023, by Mr. XXX (hereinafter referred to as the "complainant"), regarding the disclosure of a medical certificate by Dr. XXX (hereinafter referred to as the "Respondent").

Based on the investigation, I found a violation of the Regulation by the Respondent and, therefore, I issue this Decision.

A.

2. On April 10 and 12, 2023, it was reported that:

2.1. between the complainant and his ex-wife, there was pending, at the time of the submission of the complaint, judicial proceedings before the Family Court of Nicosia and the Supreme Court,

2.2. the complainant's ex-wife used her position as a doctor to obtain from the Respondent a report concerning the complainant for her personal benefit,

2.3. the complainant's ex-wife presented to the Family Court of Nicosia a medical certificate dated November 11, 2022, signed by the Respondent, which concerns the complainant. This certificate was issued without the complainant's knowledge and consent, with the intention of being used by his ex-wife in their judicial proceedings,

2.4. the judicial proceedings before the Family Court of Nicosia commenced in XXX 2022, that is, before the issuance of the medical certificate,

2.5. there are two violations concerning the complainant:

2.5.1. disclosure by the Respondent to the complainant's ex-wife,

2.5.2. from the complainant's ex-wife to the Court,

2.6. the complaint does not concern the above 2.5.2. violation, namely the disclosure from the complainant's ex-wife to the Court, in which the Court is involved,

2.7. there is no pending judicial proceeding against the Respondent. The judicial proceedings do not concern the Respondent at all, nor do they affect or are affected by the complaint,

2.8. the Respondent acted in violation of Law 125(I)/2018, and the action of the Respondent is particularly serious as it concerns personal medical data, which must receive enhanced protection due to the provisions of the Law on the Safeguarding and Protection of Patients' Rights of 2004, Law 1(I)/2005,

2.9. on December 20, 2022, a letter dated December 14, 2022, was served on behalf of the complainant to the Respondent, with questions regarding his actions. However, the Respondent did not respond to this letter. The letter states that the actions of the Respondent were in violation of:

2.9.1. the European Convention on Human Rights (Article 8),

2.9.2. the constitutional right to privacy (Article 15),

2.9.3. the Law on the Protection of Natural Persons Against the Processing of Personal Data and the

Free Movement of Such Data of 2018, Law 125(I)/2018 - (GDPR),

2.9.4. the Law on the Safeguarding and Protection of Patients' Rights of 2004, Law 1(I)/2005 (Article 15),

2.10. the Family Court of Nicosia has concluded and issued an interim Decision dated XXX 2023, and within the framework of the interim judicial proceedings, the admissibility of the testimony of the medical documents was not an issue, and there is no pending issue concerning the said documents.

In the above correspondence, on behalf of the complainant, the following were attached:

(a) a medical certificate, dated November 11, 2022. In this certificate, in addition to the details of the complainant and the Respondent, it is stated that "It is certified that the above has been under my care from 2003 to 2012. At all visits to the office, he was accompanied by his wife XXX." Additionally, the medical certificate is accompanied by medical results and/or diagnoses (5 pages). Both the medical certificate and the results and/or diagnoses are faithful copies, signed by a registrar, and bear the seal of the Family Court of Nicosia,

(b) a letter to the Respondent dated December 14, 2022, as referred to in paragraph 2.9 of this document, which is accompanied by the medical certificate and the results and/or diagnoses mentioned in paragraph 2(a) of this document. Also attached is a sworn statement of service of the letter to the Respondent, dated December 22, 2022,

(c) a document of appointment,

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****Positions of the Respondent****

On April 12, 2023, my Office sent a letter to the Respondent, with a Decision of the Family Court of Nicosia, dated XXX 2023, as (d) this refers to paragraph 2.10. of the present document.

3. Questions regarding the incident and the claims of the complainant.

4. In a letter from the Respondent's lawyers, dated April 24, 2023, in response to the above letter from my Office, the following was mentioned among others:

4.1. The Respondent, following a verbal request from the complainant's wife, handed over a certificate dated November 11, 2022. The reason for the request is unknown to the Respondent, as is the use to which the certificate was put.

4.2. The said certificate states that the complainant was monitored by the Respondent for the period 2003 - 2012 and that on all visits to the Respondent's office, he was accompanied by his wife, Ms. XXX. The above, as stated, constitutes a factual event.

4.3. The Respondent did not disclose any data and/or diagnosis and/or result concerning the complainant to his wife. The Respondent did not provide any other document to the complainant's wife that referred to his medical data.

4.4. Any reports and/or certificates concerning the medical condition of the complainant were delivered to him personally, on the dates indicated in the documents in question, and in no case were they given by the Respondent to the complainant's wife.

4.5. The Respondent was not aware that the complainant and his wife were before the Family Court and/or that a divorce had been issued between them.

4.6. It is the position of the Respondent that he did not violate any legislation and/or regulation regarding the confidentiality of the complainant's medical personal data.

5. Based on the information that the complainant had submitted in the complaint, it emerged that the complaint concerned not only the disclosure by the Respondent to the complainant's ex-wife of the medical certificate dated November 11, 2022 (one page) but also the subsequent medical results and/or diagnoses (5 pages). Therefore, on May 4, 2023, my Office sent a letter to the complainant's lawyers, with clarifying questions, both regarding the positions of the Respondent and the certificates to which the complaint referred.

6. Among other things, the following was mentioned: On May 10, 2023, the complainant's lawyers

stated to my Office

****Positions of the Complainant****

6.1. The Respondent's claim that the reason for the request was unknown and/or the use of the certificate was unknown and/or that he was unaware that a divorce had been issued between the complainant and his ex-wife does not negate the fact that it concerns personal medical information of the complainant and should not have been given to any person other than the complainant.

6.2. The said medical certificate, even if it constitutes a factual event based on the Respondent's claim, was given without the knowledge and without the consent of the complainant.

6.3. The Respondent's ignorance that the complainant and his then-wife were before the Family Court does not justify the delivery of the said medical certificate to his ex-wife. The medical certificate was given without the knowledge and without the consent of the complainant. Ignorance may simply mitigate the penalty, not the conviction.

6.4. Regarding the medical results and/or diagnoses (5 pages), since the Respondent has assured that he has not disclosed them, the complainant's lawyers stated that "we have no reason to dispute this." For this reason, they do not wish for any further investigation regarding the medical results and/or diagnoses (5 pages). It was deemed appropriate, for the purposes of a proper investigation of the complaint, to attach the medical results and/or diagnoses (5 pages), as they had been submitted in such a grouped manner in the judicial process that it was implied that beyond the medical certificate, the said medical results and/or diagnoses (5 pages) were also given to the complainant's ex-wife. Nevertheless, since it has been assured by the Respondent that the medical results and/or diagnoses (5 pages) have not been given to the complainant's ex-wife, they have no reason to dispute this.

6.5. To the complainant, during his visits to the Respondent.

6.6. Finally, they stated that the medical certificate, according to the Respondent's admission, was given to the complainant's ex-wife, without his knowledge and without his consent, and that this behavior of the Respondent was in violation of legislation and/or regulation concerning the confidentiality of the complainant's medical personal data.

****B.****

7. According to Article 4 of the Regulation, personal data is interpreted as "any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, psychological, economic, cultural, or social identity of that natural person."

They confirm that the medical results and/or diagnoses (5 pages) had been given.

****Legal Aspect****

As data concerning health, as provided by the same article of the Regulation,

8.

the "personal data which relate to the physical or mental health of a natural person, including the provision of health care services, and which reveal information concerning the health status of that person" are described.

9.

As the data controller, Article 4 of the Regulation defines "the natural or legal person, the public authority, the service, or another body which, alone or jointly with others, determines the purposes and means of the processing of personal data; when the purposes and means of such processing are determined by Union law or the law of a Member State, the data controller or the specific criteria for its appointment may be provided for by Union law or the law of a Member State."

10. Regarding the principles that must govern the processing of personal data, Article 5 of the Regulation provides that:

Personal data:

"1.

- a) shall be processed lawfully and fairly in a transparent manner in relation to the data subject ("lawfulness, fairness, and transparency"),
- b) are collected for specified, explicit, and legitimate purposes and are not further processed in a manner that is incompatible with those purposes; further processing for archiving purposes in the public interest or for scientific or historical research purposes or for statistical purposes shall not be considered incompatible with the initial purposes according to Article 89 paragraph 1 ("purpose limitation"),
- c) are adequate, relevant, and limited to what is necessary for the purposes for which they are processed ("data minimization"),
- d) are accurate and, when necessary, kept up to date; all reasonable measures must be taken to ensure the immediate deletion or correction of personal data which are inaccurate, in relation to the purposes of the processing ("accuracy"),
- e) are kept in a form which permits identification of data subjects for no longer than is necessary for the purposes of the processing of personal data; personal data may be stored for longer periods, provided that the personal data will be processed only for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89 paragraph 1 and provided that appropriate technical and organizational measures required by this Regulation are applied to safeguard the rights and freedoms of the data subject ("storage limitation"),
- f) shall be processed in a manner that ensures appropriate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures ("integrity and confidentiality").

11. Regarding the processing of special categories of personal data, Article 9 of the Regulation provides the following:

Paragraph 1 shall not apply in the following cases:

"1.

The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, as well as the processing of genetic data, biometric data for the purpose of uniquely identifying a natural person, data concerning health, or data concerning a natural person's sex life or sexual orientation is prohibited.

2.

- a) the data subject has given explicit consent to the processing of those personal data for one or more specific purposes, unless Union law or the law of a Member State provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject,
- b) the processing is necessary for compliance with a legal obligation to which the controller is subject or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller,
- c) the processing is necessary for the protection of vital interests of the data subject or of another natural person, where the data subject is physically or legally incapable of giving consent,
- d) the processing is carried out, with appropriate safeguards, in the course of the legitimate activities of a foundation, association, or other not-for-profit body with a political, philosophical, religious, or trade union aim and on the condition that the processing relates solely to members or former members of the body or to persons who have regular contact with it in connection with its purposes and that the personal data are not disclosed outside that body without the consent of the data subjects,
- e) the data has been made public by the data subject,
- f) the processing is necessary for the establishment, exercise, or defense of legal claims or whenever courts are acting in their judicial capacity."

ζ) The processing is necessary for reasons of substantial public interest, based on Union law or the law of a Member State, which is proportionate to the intended objective, respects the essence of the right to data protection, and provides appropriate and specific measures to safeguard the fundamental

rights and interests of the data subject.

η) The processing is necessary for the purposes of preventive or occupational medicine, assessment of the employee's working capacity, medical diagnosis, provision of health or social care or treatment, or management of health and social systems and services based on Union law or the law of a Member State or pursuant to a contract with a health professional, and the processing concerns personal data which have been processed by or under the responsibility of a professional in the health sector and subject to the conditions and guarantees referred to in paragraph 3.

θ) The processing is necessary for reasons of public interest in the area of public health, such as the protection against serious cross-border threats to health or the ensuring of high standards of quality and safety of health care and medicinal products or medical devices, based on Union law or the law of a Member State, which provides appropriate and specific measures for the protection of the rights and freedoms of the data subject, in particular the professional secrecy.

ι) The processing is necessary for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes in accordance with Article 89, paragraph 1, based on Union law or the law of a Member State, which are proportionate to the intended objective, respect the essence of the right to data protection, and provide appropriate and specific measures to safeguard the fundamental rights and interests of the data subject.

The personal data referred to in paragraph 1 may be processed for the purposes provided for in paragraph 2, item η), when such data are processed by or under the responsibility of a professional who is subject to the obligation of professional secrecy under Union law or the law of a Member State or under rules established by competent national authorities or by another person who is also subject to the obligation of confidentiality under Union law or the law of a Member State or under rules established by competent national authorities.

4. Member States may maintain or establish further conditions, including restrictions, regarding the processing of genetic data, biometric data, or data concerning health.

12. Pursuant to Article 57, paragraph 1, point στ) of the Regulation, the Commissioner for Personal Data Protection has the duty to:

"handle complaints lodged by the data subject or by a body or organization or association in accordance with Article 80 and investigate, as appropriate, the subject matter of the complaint and inform the complainant of the progress and outcome of the investigation within a reasonable time frame, particularly if further investigation or coordination with another supervisory authority is required."

13. Regarding the submission of a complaint to the Supervisory Authority, Article 77 of the Regulation provides that:

"Subject to any other administrative or judicial remedies, every data subject has the right to lodge a complaint with a supervisory authority, in particular in the Member State of their habitual residence or place of work or the place of the alleged infringement, if the data subject considers that the processing of personal data concerning them infringes this Regulation."

14. Pursuant to Article 58, paragraph 2, of the Regulation, the Commissioner for Personal Data Protection has the following corrective powers:

to order the controller to notify the breach

"α) to issue warnings to the controller or the processor that intended processing operations are likely to infringe provisions of this Regulation,

β) to issue reprimands to the controller or the processor when processing operations have infringed provisions of this Regulation,

γ) to order the controller or the processor to comply with the requests of the data subject to exercise their rights under this Regulation,

δ) to order the controller or the processor to bring processing operations into compliance with the provisions of this Regulation, if necessary, in a specific manner and within a specified time frame,

ε) personal data to the data subject,

στ)

****Prohibition of Processing, ****

z) to issue an order for the correction or deletion of personal data or restriction of processing pursuant to Articles 16, 17, and 18, and an order for the notification of these actions to recipients to whom the personal data were disclosed pursuant to Article 17, paragraph 2, and Article 19, to withdraw the certification or to order the certification body to

h) withdraw a certificate issued in accordance with Articles 42 and 43 or to order the certification body not to issue certification, provided that the certification requirements are not met or are no longer met, to impose an administrative fine pursuant to Article 83, in addition to or instead of

th) the measures referred to in this paragraph, depending on the circumstances of each individual case,

i) a third country or an international organization. To impose a temporary or permanent restriction, including issuing an order to suspend the circulation of data to a recipient in

Regarding the general terms of imposing administrative fines, Article 83,

15. paragraph 2 of the Regulation provides the following:

“2. Administrative fines, depending on the circumstances of each individual case, are imposed in addition to or instead of the measures referred to in Article 58, paragraph 2, points a) to h) and in Article 58, paragraph 2, point i). In making a decision regarding the imposition of an administrative fine, as well as regarding the amount of the administrative fine for each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the relevant processing, as well as the number of data subjects affected by the infringement and the degree of damage suffered,

b) the intent or negligence that caused the infringement,

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the adherence to approved codes of conduct in accordance with Article 40 or the degree of cooperation with the supervisory authority for the remedying of any relevant previous infringements by the data controller or the categories of personal data affected by the actions taken by the data controller or the

g) processor to mitigate the damage suffered by the data subjects,

d) the degree of responsibility of the data controller or the processor, taking into account the technical and organizational measures they implement pursuant to Articles 25 and 32,

e) of the processor,

st) the infringement and the limitation of its potential adverse effects,

z) the infringement,

h) the manner in which the supervisory authority was informed of the infringement, in particular whether and to what extent the data controller or the processor notified the infringement,

th) in the event that measures referred to in Article 58, paragraph 2 were previously ordered against the involved data controller or processor regarding the same subject matter, compliance with those measures,

i) approved certification mechanisms in accordance with Article 42 and

ia) any other aggravating or mitigating factor arising from the circumstances of the specific case, such as the economic benefits gained or damages avoided, directly or indirectly, from the infringement.

In the event that the data controller or the processor,

3. for the same or for related processing operations, violates several provisions of this regulation, the total amount of the administrative fine does not exceed the amount specified for the most serious infringement.

4. Violations of the following provisions incur, according to paragraph 2, administrative fines of up to 10,000,000 EUR or, in the case of enterprises, up to 2% of the total worldwide annual turnover of the previous financial year, whichever is higher:

a) the obligations of the data controller and the processor according to Articles 8, 11, 25 to 39, and 42 and 43, the obligations of the certification body according to Articles 42 and 43,

b)

c) the obligations of the monitoring body according to Article 41, paragraph 4.

5. Violations of the following provisions incur, according to paragraph 2, administrative fines of up to 20,000,000 EUR or, in the case of enterprises, up to 4% of the total worldwide annual turnover of the previous financial year, whichever is higher:

a) apply for the approval, according to Articles 5, 6, 7, and 9,

b) up to 22, the basic principles for processing, including the conditions that the rights of data subjects according to Articles 12.

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the transfer of personal data to a recipient in a third country
any obligations under the law of the member state

g)

or to an international organization in accordance with Articles 44 to 49,

d)

which are established under Chapter IX,

e)

non-compliance with an order or with a temporary or definitive restriction of processing or with a suspension of the circulation of data imposed by the supervisory authority pursuant to Article 58 paragraph 2 or failure to provide access in violation of Article 58 paragraph 1.

Reasoning

G.

16. I consider it my duty to emphasize that I am examining only the processing act concerning the issuance and notification of the medical certificate by the Respondent to the former spouse of the complainant. Any use and/or processing of the data of the certificate carried out by the former spouse of the complainant is not the subject of the investigation since, as stated to my Office by the complainant's lawyers, the complaint does not concern the "leak" by the former spouse of the complainant to the Court.

17. It is further understood that any use and/or processing of the certificate by the former spouse of the complainant, for the purposes she has defined, makes her the data controller, with all the obligations arising from the Regulation.

18. I also note that the subject of the investigation is the communication of the medical certificate only, and not the accompanying medical results and/or diagnoses (5 pages) as acknowledged by the Respondent, which were accepted by the complainant's lawyers.

19.

he himself held the said data and issued the certificate.

20.

In the certificate, in addition to the details of the Respondent, the date of issuance of the certificate,

and the details of the complainant (name and date of birth), it is stated that "It is certified that the above has been under my supervision from 2003 to 2012. In all visits to the office, he was accompanied by his wife XXX."

21. As it appears from the certificate, the complainant visited the Respondent until 2012, while the certificate was issued in November 2022, that is, ten years later. The fact that ten years had passed since the complainant's visits should have raised concerns for the Respondent regarding the reason for which the said certificate was requested, and subsequently, the Respondent should have evaluated and/or checked whether he could grant such a certificate, since it records personal data of a third party, namely the complainant.

21.1. However, the Respondent stated that the reason for which the certificate was requested was unknown. Nevertheless, the Respondent proceeded with the issuance of the certificate without obtaining consent and/or informing the complainant. Also, the fact that, as stated by the Respondent, he was not aware that the complainant and his wife were before a Family Court and/or that a divorce had been issued between them does not exempt him from any of his responsibilities.

22. The certificate included information concerning both the complainant and his former spouse, as it refers to her and her actions (i.e., that she accompanied the complainant to the Respondent from 2003 to 2012).

23. However, the data of the Respondent (visits to a cardiologist, specifically to the Respondent, from 2003 to 2012) constitute health data, that is, special categories of personal data, and therefore the provisions of Article 9 of the Regulation must be observed. Specifically, as stated in paragraph 1 thereof, the processing of such data is prohibited unless one of the cases in paragraph 2 thereof applies.

24. The processing of the complainant's data cannot be based on Article 9(2)(a) of the Regulation, as the complainant did not provide explicit consent. The fact that his former spouse requested to receive a certificate for her actions, thus for her data, does not automatically mean that she is entitled to receive, unconditionally, personal data of other individuals, specifically of the complainant, even if such data were known to her.

25. The processing of special categories of personal data may be carried out if it concerns data that have been manifestly made public by the data subject.
data, in application of Article 9(2)(e) of the Regulation. I acknowledge the fact that since the complainant allowed his ex-wife to accompany him during his visits to the Respondent, the complainant allowed his ex-wife to be aware of these visits. However, this does not mean that it grants the Respondent the right to prepare a written certificate regarding the complainant's visits and to communicate it to his ex-wife, especially since ten years have passed since the last visit. It is possible that the complainant allowed his ex-wife to know other information related to these visits, such as diagnoses and/or results. Even if this possibility holds true, it does not mean that the communication of such data is legitimized.

26. Furthermore, it cannot be considered that the communication of the certificate is legitimized on the basis of Article 9(2)(f) of the Regulation, that is, for the establishment, exercise, or defense of legal claims or when courts act in their judicial capacity. Moreover, the Respondent stated that the reason for which the certificate was requested was unknown. Even if the aforementioned reason had been mentioned by the complainant's ex-wife, the Respondent should not only have informed the complainant before communicating the certificate but also obtained his consent.

27. Beyond the above, it appears that the processing cannot be based on any other case of Article 9(2) of the Regulation. Specifically and briefly, the processing of the complainant's data cannot be based on:

27.1. Article 9(2)(b) of the Regulation, since the processing was not necessary for the performance of obligations and the exercise of specific rights of the Respondent or the complainant, or his ex-wife in the field of labor law and social security and social protection,

- 27.2. Article 9(2)(c) of the Regulation, since the complainant was not physically or legally incapable of consenting, and the processing of his data was not necessary for the protection of his vital interests,
- 27.3. Article 9(2)(d) of the Regulation, since the processing was not carried out within the framework of the legitimate activities of a foundation, organization, or other non-profit entity with a political, philosophical, religious, or trade union aim,
- 27.4. Article 9(2)(g) of the Regulation, since the processing was not necessary for reasons of substantial public interest,
- 27.5. Article 9(2)(h) of the Regulation, since the processing was not necessary for purposes of preventive or occupational medicine, assessment of the employee's working capacity, medical diagnosis, provision of health or social care or treatment, or management of health and social systems and services,
- 27.6. Article 9(2)(i) of the Regulation, since the processing was not necessary for reasons of public interest in the area of public health,
- 27.7. Article 9(2)(j) of the Regulation, since the processing was not necessary for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes.
28. Taking into account the above, it follows that the issuance and communication of the certificate to the complainant's ex-wife cannot be based on any legal ground, in violation of Article 9(2) of the Regulation. Furthermore, considering that the complainant was not informed about this, it appears that the Respondent did not adhere to the Principle of legality, objectivity, and transparency, namely Article 5(1)(a) of the Regulation, since his data was not subjected to lawful and fair processing in a transparent manner.
29. I acknowledge, however, as a mitigating factor, the fact that the aforementioned data came to the knowledge of the complainant's ex-wife because the complainant himself allowed this. What is recorded in the certificate was already known to her, as it was also known to the complainant that his ex-wife was aware of this information. I also acknowledge as a mitigating factor that the certificate does not delve into further references regarding the medical condition, history, diagnoses, or results concerning the complainant.

D.

30. Taking into account all the above elements, as they have been presented, and based on the powers conferred upon me by Article 57(1)(f) of the Regulation, I find that there is a violation by Dr. XXX of:

30.1. Article 5(1)(a) of the Regulation (EU) 2016/679, because the complainant's data was not subjected to lawful and fair processing in a transparent manner,

30.2. Article 9(2) of the Regulation (EU) 2016/679, because the issuance and communication of the certificate, which included data concerning health, lacked legality.

Conclusion

the above mitigating and aggravating factors,
the applicable legislative basis regarding the
prescribed administrative sanctions
the fact that the certification was limited to
the absolutely necessary data,
all the circumstances and factors that the
complainant and the Respondent presented
the fact that the certification included data
of the person to whom
the fact that the certification was issued ten years after
the last visit of
the cooperation of the Respondent with my Office,

the categories of data that were violated, which concern special

31. Based on the provisions of Article 83 of the Regulation, regarding the terms for the imposition of administrative fines, to the extent that they apply to the specific case, in determining the administrative fine, I took into account the following mitigating (a) - (d) and aggravating (e) - (f) factors:

(a)
the fact that the personal data of the complainant that were disclosed were already known, as the complainant himself allowed his former spouse to accompany him on his visits to the Respondent,

(b)
was disclosed,

(c)
without further explanations,

(d)

(e)

categories of data,

(f)

of the complainant.

32. After considering and assessing:

(a)
the provisions of Article 58(2) and Article 83 of the Regulation,

(b)
before me based on all existing correspondence,

(c)

I find that, under the circumstances, the imposition of an administrative fine is not justified.

33. Nevertheless, having regard to the aforementioned facts, the legal aspect on which this Decision is based, and the analysis as explained above, and exercising the powers conferred upon me by Article 58(2)(d) of the Regulation,

I decided

in my judgment and in accordance with the above provisions, to issue a reprimand to Dr. XXX

for the violation of Articles 5(1)(a) and 9(2) of Regulation (EU) 2016/679 and to call upon him not to repeat any related processing without the appropriate legal basis.

Peace Loizidou Nicolaidou
Commissioner for the Protection
of Personal Data
February 27, 2024